

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

COOL LIVING LLC, *Complainant*

v.

ALPI U.S.A., INC. AND ALPI AIR & SEA A/S, *Respondents.*

DOCKET NO. 25-28

Served: July 21, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge.*

ORDER ON MOTIONS FOR EXTENSION OF DEADLINES

This matter came on for consideration of Complainant's Motion for Extension of the June 13 Deadline to Depose Mr. Michael Haahr Hansen filed July 6, 2026 (Dkt. 34); Respondents' Opposition to Complainant's Motion for Extension of the July 13 Deadline to Depose Mr. Michael Haahr Hansen, together with Exhibits A through C filed July 13, 2026; and the Second Joint Motion for Extension filed July 21, 2026. For the reasons set forth below, both motions for extension are **GRANTED** subject to the conditions set forth in this order and the discovery period is extended to **September 18, 2026**, for the limited purpose of allowing Complainant to depose Michael Haahr Hansen in his individual capacity. The June 8, 2026, order granting the motion to withdraw by Complainant's counsel ("the Firm") and June 12, 2026, order following status conference are modified to provide that the Firm shall continue to represent Complainant for the limited purpose of taking the deposition of Michael Haahr Hansen and any ancillary matters related thereto.

On July 14, 2026, a status conference was held to discuss the discovery dispute arising from Complainant's motion for extension and Respondents' opposition thereto. Pursuant to the Order Following Status Conference dated July 14, 2026, the parties were directed to meet and confer to discuss the potential for a mutually agreeable resolution. The parties were directed to file a Joint Status Report no later than July 17, 2026, addressing specified matters and reporting progress on a plan to resolve their discovery dispute. On July 17, 2026, the parties timely filed their joint status report with a proposed plan for conducting Michael Haahr Hansen's deposition and extending the schedule to accommodate the needs of Respondents' counsel. The proposed plan set forth in the parties' Joint Status Report is reasonable and will be adopted. I find that good cause exists to extend the schedule by sixty days to ensure the record is fully developed in a manner that accommodates the needs of Respondents' counsel due to prior professional and personal commitments. Specifically, Respondents' attorneys have scheduling conflicts due to a trial in another proceeding and a planned vacation. Counsel are to be commended for working together to resolve their dispute without unnecessary intervention by the tribunal. I find that granting a 60 day extension of the existing deadlines to accommodate prior commitments in their schedules is reasonable under the circumstances.

The Joint Status Report filed by the parties provides that the parties have agreed to the following plan for conducting the deposition of Michael Haahr Hansen:

- Michael Haahr Hansen has agreed to be deposed remotely during the week of August 3, 2026, or August 10, 2026, subject to Counsel's trial calendar. Counsel for Respondents are working through their schedules to effectuate this deposition. Once a date is confirmed by counsel for Respondents, a subpoena with the agreed date, time and location will be submitted to the Presiding Officer.
- Because Michael Haahr Hansen has agreed to a remote deposition, the parties will effectuate a stipulation memorializing this agreement.
- Complainant will be responsible for securing a court reporter, and the parties agree that court reporter may be in-person or remote to effectuate the deposition of Michael Haahr Hansen.
- Michael Haahr Hansen has agreed to allow his counsel, counsel for Respondents, to accept service of the subpoena issued, by email from counsel for Complainant, once the subpoena is issued by the Presiding Officer.
- Respondents' counsel have no availability before August 2, 2026. There are no blackout dates, per se. They are generally available during the week of August 3 and August 10, 2026, subject to Respondent's trial availability. Michael Haahr Hansen will waive the 21-day notice requirement for the subpoena issuance.
- The parties agree to extend discovery by 60 days in order to take the testimony of Michael Haahr Hansen so that the parties have greater flexibility in scheduling the deposition. The parties also agree to submit a joint request for an extension of the discovery deadline on Monday, July 20, 2026, which memorializes this agreement.

For the foregoing reasons, it is

ORDERED that Complainant's Motion for Extension of the July 13 Deadline to Depose Mr. Michael Haahr Hansen filed July 6, 2026, is **GRANTED** subject to the conditions set forth in this order, it further

ORDERED that the Joint Motion Discovery Deadline filed July 21, 2026, is **GRANTED** subject to the conditions set forth in this order, it further

ORDERED that the parties are directed to proceed in accordance with their Joint Status Report filed July 17, 2026, it is further,

ORDERED, that the June 8, 2026, Order on Motion to Withdraw and June 12, 2026, Order Following Status Conference are modified to provide that the Firm shall continue to represent Complainant as specified herein. The Firm's representation is limited to taking the

deposition of Michael Haahr Hansen, and any ancillary matters related to or arising from those depositions, including but not limited to scheduling, discovery disputes, and claims of privilege; it is further

ORDERED, that Complainant shall be on notice that it is required to comply with all scheduling deadlines regardless of whether in has retained new counsel and that further extensions will only be granted upon a showing of good cause. Absent extraordinary circumstances, no further extensions will be granted, it is further

ORDERED that the existing scheduling deadlines are extended by a period of 60 days and the parties shall follow the following schedule:

September 18, 2026	Deadline to depose Michael Haahr Hansen
October 12, 2026	Complainant's brief, proposed findings of fact, and appendix
November 13, 2026	Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
December 23, 2026	Complainant's reply brief and responses to proposed findings of fact

MARY A. HERVEY -S

Digitally signed by MARY A.
HERVEY -S
Date: 2026.07.21 11:26:07 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge